

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, April 1, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27412 against Police Officer Edward Wetherell Tax Registry No. 951430. The case was conferenced on March 19, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Schedule [A] Command Discipline with the forfeiture of ONE (1) vacation day for DADS No. 2022-27412, after accepting the finding(s) of substantiation of the allegations contained in the aforementioned Charges and Specifications. The charges will be dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-27412

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, WETHERELL	FIRST EDWARD	M.I. A	COMMAND 103 PRECINCT
SHIELD NO. 1028	TAX REGISTRY NO. 951430	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Edward WETHERELL, on or about September 26, 2021, at approximately 2053, while assigned to 103 PCT and on duty, in the vicinity of 179-32 Hillside Avenue, Queens County, was discourteous, in that PO WETHERELL spoke discourteously to § 87(2)(b) by stating in sum and substance, get that fucking phone out my face, without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 1.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Edward WETHERELL, on or about September 26, 2021, at approximately 2053, while assigned to 103 PCT and on duty, in the vicinity of 179-32 Hillside Avenue, Queens County, was discourteous, in that PO WETHERELL acted discourteously toward § 87(2)(b) by slapping § 87(2)(b) cellular telephone out of his hand, without police necessity.	DISMISSED	
3. Police Officer Edward WETHERELL, on or about September 26, 2021, at approximately 2053, while assigned to 103 PCT and on duty, in the vicinity of 179-32 Hillside Avenue, Queens County, was discourteous, in that PO WETHERELL	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

4/15/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

5/22/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27412
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, WETHERELL	FIRST EDWARD	M.I. A	COMMAND 103 PRECINCT
SHIELD NO. 1028	TAX REGISTRY NO. 951430	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
spoke discourteously to § 87(2)(b) by stating in sum and substance, I told you to stay the fuck away from me, without police necessity. 4 . Police Officer Edward WETHERELL, on or about September 26, 2021, at approximately 2053, while assigned to 103 PCT and on duty, in the vicinity of 179-32 Hillside Avenue, Queens County, abused their authority as a member of the New York City Police Department, in that PO WETHERELL refused to provide his name to § 87(2)(b) without sufficient legal authority.	DISMISSED	

DC Brabino 4/15/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

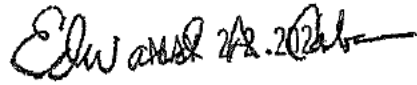
Edward A. Caber 5/22/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner April 15, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27412 against Police Officer Edward Wetherell, Tax No. 951430, with the recommendation that Police Officer Wetherell receive a Schedule "A" Command Discipline, with the forfeiture of one (1) vacation days. Assistant Deputy Commissioner, Trials Jeff Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

TIK/jpc


Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

EDWARD A. CABAN
POLICE COMMISSIONER